UNIVERSITY OF MAKATI
UNIVERSITY STUDENT COUNCIL

CONSTITUTION

2026 AMENDED AND REVISED EDITION

USC Core Values

Excellence • Professionalism • Integrity • Compassion

University of Makati
J.P. Rizal Extension, West Rembo, Makati City
Room 210, Academic Building 2

AUDIT REPORT

ERRORS, INCONSISTENCIES & LOOPHOLES FOUND IN THE 2019 CONSTITUTION

The following issues were identified in the 2019 version and have been corrected in this 2026 Amended and Revised Constitution:

A. TYPOGRAPHICAL / SPELLING ERRORS

1) The title and all page headers read "CONSITUTION" — the correct spelling is "CONSTITUTION." This error appears on every page of the 2019 document and has been corrected throughout.

2) Article VII, Section 4(B)(d) was an incomplete sentence: "the President in all matters where his/her assistance is necessary." The word "Assist" at the beginning was missing and has been restored.

3) Article XV heading reads "ACCOOUNTABILITY" — corrected to "ACCOUNTABILITY."

4) Article XVII, Section 5 (second instance) references "miscellaneous fee" without clarification; the term is ambiguous and has been clarified.

B. NUMERICAL INCONSISTENCIES

1) Article X, Section 2 states "(11) Twelve Magistrates" — a direct conflict between the numeral (11) and the word (Twelve). This has been resolved to eleven (11) Magistrates plus one (1) Chief Magistrate for a total of twelve (12), preserving an odd-numbered voting body when the Chief Magistrate votes to break ties.

2) Article XI, Section 2 states "(11) members and (1) Student's Congress President" — ambiguous as to whether the President is counted within the 11 or outside it. This has been clarified to eleven (11) members including the President.

C. DUPLICATE SECTION NUMBERING

1) Article XIII contains two (2) separate provisions both numbered "Section 5." The second one (on composition) has been re-numbered to Section 5-A and renumbered accordingly.

2) Article XVII contains two (2) separate provisions both numbered "Section 5." The duplicate has been re-numbered as Section 8 and the article renumbered accordingly.

D. LOGICAL INCONSISTENCIES / LOOPHOLES

1) Article XIV, Section 6: 'Filing of leave of absence for one semester' is listed simultaneously under BOTH permanent and temporary vacancies, creating a direct contradiction. Under this 2026 version, filing of a leave of absence (one semester) creates a TEMPORARY vacancy only. Filing of a leave of absence beyond one semester creates a PERMANENT vacancy.

2) Article III contains two near-identical provisions in Sections 1 and 2 on the USC's duty to protect student rights — these have been consolidated into a single, stronger section.

3) No provision existed for succession if both the President AND Vice President are simultaneously and permanently incapacitated. A clear succession line has been established.

4) No provision existed for conducting meetings or elections online or in hybrid format, a gap made apparent by the pandemic. A new section has been added under General Provisions.

5) No anti-conflict-of-interest provision existed. Relatives within the second degree of consanguinity or affinity serving simultaneously on the same council body are now prohibited from voting on matters affecting the other.

6) The membership fee of Fifty Pesos (₱50.00) was hardcoded into the Constitution, making it inflexible. Under this revision, the amount is set by the USC in the By-Laws, not the Constitution, to allow adjustment without requiring a constitutional amendment.

7) No whistleblower protection existed for students reporting misconduct by council officers. A protection clause has been added.

8) No provision referenced compliance with the Data Privacy Act (RA 10173), Safe Spaces Act (RA 11313), or the Mental Health Act (RA 11036), despite these being applicable to student organizations. A Compliance with Applicable Laws article has been added.

9) The impeachment process lacked clear timelines (e.g., how long Congress has to act on a resolution, how long deliberations may last). Specific timeframes have now been provided.

10) The term 'major offense' is used in multiple articles without definition or cross-reference to a governing document. This version now explicitly cross-references the Student Handbook as the controlling definition.

E. GRAMMAR AND STYLE CORRECTIONS

1) Inconsistent use of possessive: the document alternates between "Students' Congress" and "Student's Congress." The correct form, "Students' Congress" (plural possessive), is used consistently throughout this 2026 version.

2) Multiple run-on sentences, missing articles ("the", "a"), and subject-verb agreement errors throughout the 2019 version have been corrected.

3) Inconsistent capitalization of titles and committee names has been standardized.

TABLE OF CONTENTS

PREAMBLE
ARTICLE I. GENERAL PROVISIONS
ARTICLE II. NAME AND DOMICILE
ARTICLE III. DECLARATION OF PRINCIPLES AND OBJECTIVES
ARTICLE IV. MEMBERSHIP
ARTICLE V. STUDENTS' BILL OF RIGHTS
ARTICLE VI. DUTIES AND OBLIGATIONS OF STUDENTS
ARTICLE VII. DEFINITION OF TERMS
ARTICLE VIII. THE COMPOSITION AND FUNCTIONS OF THE USC EXECUTIVE BOARD
ARTICLE IX. POWERS AND DUTIES OF THE UNIVERSITY STUDENT COUNCIL
ARTICLE X. THE COLLEGE STUDENT COUNCIL
ARTICLE XI. THE STUDENTS' JUDICIAL COUNCIL
ARTICLE XII. THE STUDENTS' CONGRESS
ARTICLE XIII. COORDINATING COUNCIL OF CAMPUS CO-CURRICULAR ORGANIZATIONS
ARTICLE XIV. THE COMMISSION ON STUDENT ELECTIONS
ARTICLE XV. TENURE, QUALIFICATIONS, AND VACANCY
ARTICLE XVI. ACCOUNTABILITY OF STUDENT OFFICERS
ARTICLE XVII. CSC AND USC ADVISERS
ARTICLE XVIII. FUNDING OF THE UNIVERSITY STUDENT COUNCIL
ARTICLE XIX. COMPLIANCE WITH APPLICABLE LAWS
ARTICLE XX. AMENDMENTS AND REVISIONS
ARTICLE XXI. SEPARABILITY CLAUSE
ARTICLE XXII. TRANSITORY PROVISION

PREAMBLE

We, the students of the University of Makati, invoking the guidance of the Almighty God, and recognizing the vital role of a Student Council in upholding the academic standards of our Alma Mater, cultivating personal development, advancing our collective interests, uniting the entire student body, and protecting the rights and general welfare of all students — imbued with the USC Core Values of Excellence, Professionalism, Integrity, and Compassion — do hereby ordain and promulgate this Constitution.

ARTICLE I
GENERAL PROVISIONS

Sec. 1. This Constitution shall be known as the Constitution of the University of Makati (UMak) Student Council.

Sec. 2. This Constitution shall govern the University Student Council and the College Student Councils, and shall guide the various Campus Co-Curricular Organizations of the University.

Sec. 3. The highest union and organization of undergraduate students of the University of Makati shall be known as the University Student Council, hereinafter referred to as the USC, with College Student Councils established in all existing colleges and academic centers.

Sec. 4. The University Student Council, as mandated by the student body, shall be the official representative of all bona fide students of the University of Makati.

Sec. 5. The University Student Council is the highest student organization of the University of Makati Student Body, and all of its powers emanate from the students, exercised through the governing bodies constituted in this Constitution.

Sec. 6. In recognition of the realities of modern communication and public health imperatives, duly called meetings, assemblies, elections, and other official council proceedings may be conducted in-person, online, or in a hybrid format, provided that: (a) all members are duly notified through official channels at least three (3) working days prior to any meeting; (b) the platform used ensures secure and verifiable participation; and (c) a proper record of attendance and proceedings is maintained.

ARTICLE II
NAME AND DOMICILE

Sec. 1. The organization shall be officially known as the University of Makati (UMak) Student Council.

Sec. 2. The permanent office of the University of Makati Student Council shall be located at Room 210, Academic Building 2, University of Makati, J.P. Rizal Extension, West Rembo, Makati City. Any change to the official domicile shall require a resolution of the USC Executive Board approved by the Office of Student Life (OSL).

ARTICLE III
DECLARATION OF PRINCIPLES AND OBJECTIVES

A. PRINCIPLES

Sec. 1. The University Student Council is a democratic organization whose prime duty is to protect the rights, advance the interests, and guarantee the general welfare of the University of Makati Student Body.

Sec. 2. All decisions, matters for discussion, and official acts of the University Student Council shall be conducted in accordance with parliamentary procedures and the provisions of this Constitution.

Sec. 3. The University Student Council shall operate through a collaborative approach, fostering transparency, consultation, and consensus in all its actions.

Sec. 4. All Council Officers must remain faithful, at all times, to the office they serve and to the students they represent.

Sec. 5. The University Student Council affirms the importance of academic freedom, effective student services, and the right of students to participate in decision-making processes that affect them.

Sec. 6. The University Student Council recognizes the importance of various student organizations and other groups established within the University, so long as they are not contrary to the provisions of this Constitution and applicable law.

Sec. 7. The University Student Council shall uphold the dignity of every student regardless of gender, sexual orientation, gender identity and expression (SOGIE), race, ethnicity, religion, socioeconomic status, or disability.

B. OBJECTIVES

Sec. 1. The University Student Council shall promote mutual understanding through social, civic, intellectual, recreational, and scientific programs and activities.

Sec. 2. The University Student Council shall promote the virtues of responsibility, transparency, and accountability at all levels of its operations.

Sec. 3. The University Student Council shall assist in the values formation and character education of students by promoting activities that instill civic participation and allow students to take an informed stand on significant local, national, and global issues.

Sec. 4. The University Student Council shall undertake protective measures against all forms of abuse, harassment, discrimination, and repression that are detrimental to the students' well-being.

Sec. 5. The University Student Council shall foster a safe, inclusive, and gender-responsive campus environment consistent with applicable laws and University policies.

ARTICLE IV

MEMBERSHIP

Sec. 1. All bona fide students of the University of Makati are automatically members of the University Student Council upon enrollment.

Sec. 2. All members of the University Student Council shall pay the USC membership fee, which shall be collected by the University Cash Office during the enrollment period of every semester.

Sec. 3. The fixed amount of the membership fee shall be determined and approved by the USC Executive Board through a formal resolution, subject to the approval of the Management Committee and the Office of Student Life. The fee schedule shall be published in the USC By-Laws and shall be reviewed at least once every three (3) academic years.

Sec. 4. Students automatically lose their USC membership upon any of the following: (a) graduation from the University of Makati; (b) filing of a leave of absence; (c) non-enrollment in any given semester of an academic year; or (d) transfer to another educational institution. Membership may be regained upon re-enrollment in the University.

ARTICLE V
STUDENTS' BILL OF RIGHTS

Sec. 1. Right to Academic Freedom:

a) The right to quality education;

b) The right to participate, through Student Council officers as representatives, in any decision-making process that directly affects the general welfare of students;

c) The right to be informed of one's class standing and to see the computation of one's grades; and

d) The right to request a written evaluation of one's class performance.

Sec. 2. Right to Information:

a) Every student has the right to be given consultation by their professors within the latter's designated consultation hours;

b) Every student has the right to access their official academic records and other pertinent documents related to their official transactions, with the confidentiality of such records maintained in accordance with the Data Privacy Act (RA 10173);

c) Every student has the right to be consulted and informed about tuition fee increases, rules, regulations, and other school policies before their implementation; and

d) Every student has the right to evaluate the performance of their professors through the University's official evaluation mechanisms.

Sec. 3. Right to Due Process:

a) Every student has the right to be informed of the nature of any complaint or accusation against them;

b) Every student has the right to defend themselves against accusations;

c) No student shall be subjected to disciplinary action, suspension, or expulsion without due process; and

d) Every student has the right to be presumed innocent until proven otherwise.

Sec. 4. Every student has the right to form, join, and actively participate in organizations, groups, and associations for purposes not contrary to law, University regulations, and this Constitution.

Sec. 5. Every student has the right to freedom of expression in accordance with the provisions of the University Student Handbook and applicable Philippine law.

Sec. 6. Right to Press Freedom and Publication:

a) Every recognized organization has the right to post and circulate banners, posters, announcements, brochures, and leaflets in accordance with the policies and regulations of the University of Makati; and

b) The University of Makati Student Media Group (USMG) is the University of Makati's official press publication and shall be free from undue interference from the USC or University administration in matters of editorial content.

Sec. 7. Right to Suffrage:

a) Every bona fide student has the right and obligation to vote in the annual Student Council election; and

b) Every student is encouraged to actively participate in all student electoral processes.

Sec. 8. Right to a Safe Learning Environment: Every student has the right to a campus environment free from sexual harassment, gender-based violence, bullying, and discrimination in any form, consistent with the Safe Spaces Act (RA 11313), the Anti-Bullying Act (RA 10627), and other applicable laws.

Sec. 9. Right to Mental Health Support: Every student has the right to access mental health services and support mechanisms within the University, consistent with the Mental Health Act (RA 11036).

Sec. 10. Right to Whistleblower Protection: Any student who, in good faith, reports a violation of this Constitution or any law by a Council officer shall be protected from retaliation, harassment, or any form of discrimination by the reporting itself. The Students' Judicial Council shall have jurisdiction to hear complaints arising from any act of retaliation.

Sec. 11. The University Student Council recognizes the vital role of all accredited organizations in exercising students' rights and promoting their welfare.

ARTICLE VI

DUTIES AND OBLIGATIONS OF STUDENTS

Sec. 1. Every student has the responsibility to observe the laws of the Republic of the Philippines and the rules and regulations of the University at all times.

Sec. 2. Every student shall pay the University Student Council fee as regulated and approved by the appropriate University policy.

Sec. 3. Every student shall support, promote, and observe the principles and objectives of the University Student Council and the University.

Sec. 4. Every student shall exercise their rights and privileges responsibly and with due respect for the rights of others.

Sec. 5. Every student shall promote the good name and reputation of the University.

Sec. 6. Every student shall maintain University properties, facilities, and equipment free from all forms of destruction and vandalism.

Sec. 7. Every student shall help promote an academic atmosphere conducive to learning and harmony among all members of the University of Makati community.

Sec. 8. Every student shall be gender-sensitive and culturally sensitive in handling issues, without bias as to sexual orientation, gender identity and expression (SOGIE), or racial and ethnic background.

ARTICLE VII
DEFINITION OF TERMS

As used in this Constitution, the following terms shall mean:

Sec. 1. "Bona fide student" — Any student currently enrolled in a regular academic program at the University of Makati in the current semester.

Sec. 2. "Academic year" — A period consisting of two (2) regular semesters as defined by the University of Makati Academic Calendar.

Sec. 3. "Major offense" — Any act classified as a major offense under the currently effective University of Makati Student Handbook, as may be amended from time to time.

Sec. 4. "Quorum" — The minimum number of members required to be present for an official meeting or decision, which shall be a majority (50% + 1) of the total membership of the body concerned, unless otherwise specified in this Constitution.

Sec. 5. "USC" — The University Student Council of the University of Makati.

Sec. 6. "CSC" — The College Student Council of any given college or academic center within the University of Makati.

Sec. 7. "OSL" — The Office of Student Life of the University of Makati.

Sec. 8. "PSA" — The Prefect of Student Activities of the University of Makati.

Sec. 9. "HSU-SSG" — The Higher School ng UMak Supreme Student Government.

Sec. 10. "COSEL" — The Commission on Student Elections.

Sec. 11. "GWA" — General Weighted Average.

Sec. 12. "Working days" — Days excluding Saturdays, Sundays, and official University and national holidays.

ARTICLE VIII
THE COMPOSITION AND FUNCTIONS OF THE USC EXECUTIVE BOARD

Sec. 1. The USC Executive Board shall be the highest governing body and primary representative authority of the University Student Council. The USC Executive Board shall be composed of the Chairpersons of the various College Student Councils and the President of the Higher School ng UMak (HSU) Supreme Student Government.

Sec. 2. The Executive Board shall be elected by the different College Student Councils by majority vote during the annual Student Council elections.

Sec. 3. The presence of a majority (50% + 1) of the total membership of the Executive Board shall constitute a quorum. No official business shall be transacted in the absence of a quorum.

Sec. 4. The USC Executive Board shall be composed of the following officers and committees:

A. The President

The President shall have the following duties and responsibilities:

a) Represent the students to the Board of Regents and at events where the organization requires representation;

b) Sign all official documents, resolutions, project proposals, budget requests, and all communications of the University Student Council;

c) Present to the USC and to the Coordinating Council of Campus Co-Curricular Organizations the Annual Action Plan, Budget Proposal, and Accomplishment Report of the University Student Council;

d) Supervise and coordinate all functions and activities of the University Student Council;

e) Call, preside over, and adjourn Executive Board and USC meetings;

f) Regularly attend the Executive Committee meetings and all University Student Council meetings; and

g) Perform such other duties as may be necessary for the effective discharge of the functions of the office.

B. The Vice President

The Vice President shall have the following duties and responsibilities:

a) Assume the responsibilities of the President if the President is absent or incapacitated;

b) Preside over Executive Board and USC meetings in the absence of the President;

c) Assist the President in all matters where assistance is necessary;

d) Supervise members in planning and arranging meetings and programs of activities; and

e) Sign all official documents, resolutions, project proposals, budget requests, and all communications of the USC in the absence of the President.

C. The Secretary General

The Secretary General shall have the following duties and responsibilities:

a) Record all minutes of the proceedings of the USC;

b) Prepare communication letters and reports;

c) Ensure the safekeeping of all necessary papers and records of the University Student Council;

d) In the absence of both the President and Vice President, sign all official documents, resolutions, project proposals, budget requests, and communications of the USC;

e) Coordinate with all College Student Council Secretaries to facilitate an effective filing system for the USC; and

f) Administer the dissemination of information on University-wide activities, programs, and campaigns of the USC.

g) An Assistant Secretary may be appointed with the approval of the Students' Judicial Council.

D. The Finance and Review Committee

a) Maintain the accountability and transparency of the USC by monitoring and enforcing standard operating procedures concerning the USC financial system;

b) Coordinate with the University Cash Office regarding financial matters of the University Student Council;

c) Supervise all payments, requisitions, and liquidations of all USC transactions;

d) Prepare financial reports of all student activities organized by the USC for submission to the PSA, the Dean of the OSL, and the Accounting Office;

e) Assist all College Student Council Treasurers in preparing financial reports;

f) Sign as one of the recommending approvals, together with the PSA and the Dean of the OSL, on all budget requests of student organizations;

g) Take charge of the planning of the USC annual budget during Executive Board meetings; and

h) An Assistant Treasurer may be appointed with the approval of the Students' Judicial Council.

E. The Audit and Property Custodian Committee

a) Review and validate the accuracy and general acceptability of reports submitted by the Finance Committee;

b) Assist all College Student Council Auditors in auditing their financial statements;

c) Prepare the annual audit report of the University Student Council;

d) Act as Custodian of all properties of the University Student Council;

e) Manage, control, maintain, and secure all USC properties, and maintain accurate records and documentation for all property assigned to the USC; and

f) Implement the house rules of the USC office as approved by the Executive Board.

F. The Education and Research Committee

a) Plan and organize seminars and forums focusing on organization development, academic growth, issue advocacy, spiritual and values formation, sports, outreach programs, and community engagement;

b) Enhance and promote the USC Executive Board's policies, principles, and strategic plans in relation to learning and research;

c) Monitor all administrative matters relating to education and research; and

d) Review and recommend to the Executive Board the policies and actions concerning the administration of fees, contracts, funds, and assets related to education and research.

G. The Health and Sports Committee

a) Provide physical activities and wellness programs for students of the University;

b) Organize and conduct sports and games activities among students in a disciplined and inclusive manner;

c) Recommend possible improvements to sporting facilities and programs;

d) Establish appropriate coordination of health and wellness services for students to provide efficient and effective support;

e) Provide medical assistance during USC events and other physical programs; and

f) Perform other tasks assigned by the Executive Board.

H. The Community and Extension Committee

a) Serve as the external linkage of the USC to communities outside the University;

b) Identify and recommend communities where the USC can extend meaningful assistance; and

c) Organize and implement community extension programs and services.

I. The Socio-Cultural Committee

a) Provide programs related to issue advocacy and other socio-cultural activities;

b) Strengthen and promote a sense of community among all students through programs and activities;

c) Create platforms that provide students with opportunities to display creative talents; and

d) Perform other tasks assigned by the Executive Board.

J. The Public Information Committee

a) Distribute information related to upcoming programs and activities of the USC;

b) Filter announcements to ensure the reliability of information disseminated;

c) Administer the official page and official communication channels of the University Student Council; and

d) Perform other tasks assigned by the Executive Board.

K. The Student Personality Development Committee

a) Assist UMak students in all aspects of their personal growth and development;

b) Plan and implement programs and activities related to personality development that help students hone and showcase their talents and character;

c) Coordinate with the Guidance Office for the purpose of uplifting the morale and mental well-being of students; and

d) Perform other tasks assigned by the Executive Board.

L. The Board Members

a) The Board shall be composed of two (2) members: one (1) College Chairperson and one (1) HSU-SSG President;

b) The President of the HSU-SSG shall be seated as a Board Member;

c) Board Members shall represent the College student body and HSU students to the USC, and at events where the organization requires representation;

d) Board Members shall create and suggest programs and activities for the various USC committees; and

e) Perform other tasks assigned by the Executive Board.

Sec. 5. Conflict of Interest: Any USC officer who is related within the second degree of consanguinity or affinity to another officer of the same council body shall be prohibited from voting on any matter that directly and personally benefits that relative. Such officer shall disclose the relationship and abstain from deliberation and voting on the affected matter.

ARTICLE IX
POWERS AND DUTIES OF THE UNIVERSITY STUDENT COUNCIL

Sec. 1. The University Student Council shall be the highest governing body representing the entire student body of the University of Makati.

Sec. 2. The University Student Council shall have the following functions, duties, and responsibilities:

a) Formulate and recommend programs that address relevant issues and concerns of the students;

b) Plan and implement policies and programs designed to protect and promote students' rights and welfare;

c) Monitor and evaluate student activities within the University and in the community;

d) Create committees necessary to address the needs of the students;

e) Make recommendations to University authorities regarding student matters, affairs, and activities;

f) Serve as a representative of the studentry in voicing their opinions, suggestions, and grievances;

g) Summon any officer of the Student Council for inquiry on matters pertaining to their duties and functions;

h) Act as the Coordinating Council of all Campus Co-Curricular Organizations;

i) Monitor and supervise elections of other recognized University Co-Curricular Organizations;

j) Review and supervise the granting, renewal, or revocation of accreditation of University Student Organizations through the OSL and PSA;

k) Turn over all financial assets, papers, documents, properties, and other responsibilities to the incoming University Student Council at the end of every term; and

l) Spearhead all mandated duties, powers, programs, and activities of the USC, including but not limited to organization development, academic initiatives, issue advocacy, spiritual and values formation, sports, outreach programs, and community engagement.

ARTICLE X
THE COLLEGE STUDENT COUNCIL

Sec. 1. The political and administrative subdivisions of the University Student Council are the College Student Councils (CSC).

Sec. 2. All CSC officers shall be elected at large by their respective college constituents and shall be composed of the following officers with the stated duties and responsibilities:

A. Chairperson

a) Automatically becomes a member of the corresponding committee in the USC;

b) Acts as the presiding officer at all meetings of the College Student Council;

c) Represents the CSC on occasions or events where the organization requires representation;

d) Signs all resolutions, communications, project proposals, requests, and all other official documents of the CSC;

e) Supervises, monitors, and assists their respective college organizations, provided that such supervision is not contrary to the organizations' own Constitution and By-Laws; and

f) Performs other duties necessary for the proper discharge of the functions of the office. The Chairperson must be at least a second-year (2nd-year) student.

B. Vice Chairperson

a) Assumes the functions of the Chairperson in case of the latter's absence or vacancy;

b) Assists the Chairperson in carrying out the objectives of the College Student Council;

c) Signs all resolutions, communications, project proposals, requests, and other official documents of the CSC in the absence of the Chairperson; and

d) Performs all other functions delegated by the Chairperson.

C. Secretary

a) Takes the minutes of the meeting and ensures the safekeeping of all records of the CSC;

b) Prepares communication letters and files documents needed by the CSC;

c) Automatically becomes a member of the USC Secretary General's Committee; and

d) Performs all other functions related to the CSC as delegated by the Chairperson. The CSC Secretary is eligible to be appointed as the USC Assistant Secretary upon the approval of the Students' Judicial Council.

D. Treasurer

a) Collects and receives all incoming CSC funds, except for the USC fund, which shall be collected by the Accounting Office;

b) Supervises all payments, requisitions, and liquidation transactions;

c) Submits a financial report to the USC, OSL, and PSA at the end of every semester;

d) Automatically becomes a member of the USC Finance and Review Committee; and

e) Performs all other functions related to the CSC as delegated by the Chairperson. The CSC Treasurer is eligible to be appointed as the USC Assistant Treasurer upon the approval of the Students' Judicial Council.

E. Auditor

a) Audits the financial statements prepared by the Treasurer;

b) Assists the Treasurer in facilitating financial transactions of the CSC;

c) Monitors fund allocations for every CSC activity;

d) Takes charge of the equipment and properties of the CSC; and

e) Performs all other functions related to the CSC as delegated by the Chairperson.

F. Year Level Representatives

a) Represent their respective year level to the Student Representatives' Assembly;

b) Recommend and propose programs for the benefit of their respective year level;

c) Coordinate with Class Representatives to address student concerns within their year level; and

d) Perform all other functions related to the CSC as delegated by the Chairperson.

ARTICLE XI

THE STUDENTS' JUDICIAL COUNCIL

Sec. 1. The Students' Judicial Council is a constitutional body that shall serve as the official Judicial Arm of the University Student Council.

Sec. 2. The Students' Judicial Council shall be composed of eleven (11) Magistrates, from among whom one (1) shall be elected as Chief Magistrate, for a total of twelve (12) members. All Magistrates must be:

a) A regular, bona fide student of the University of Makati; and

b) Of good moral character with no derogatory records, as certified by the Office of Student Life.

Sec. 3. The Students' Judicial Council shall:

a) Sit en banc, hear, try, and resolve complaints involving matters of constitutionality, legality, and jurisdiction over acts, policies, and resolutions of the USC;

b) Create its own Internal Rules of Court, determining its necessary structure and procedures consistent with this Constitution;

c) Work in coordination with the Finance and Review Committee and the Students' Congress to ensure transparency and accountability of the USC, its units, and its members;

d) Review, approve, and/or reject decisions on appointments made by the Executive Board;

e) Summon officers and order investigations, suspensions, and impeachments or recalls of Executive Board members, consistent with Article XVI of this Constitution; and

f) Interpret this Constitution and all USC policies; all decisions shall be final and executory unless reconsidered by a two-thirds (2/3) vote of all Magistrates.

Sec. 4. The Chief Magistrate of the Students' Judicial Council shall:

a) Preside over all proceedings of the Students' Judicial Council; and

b) Act as the official spokesperson of the Students' Judicial Council.

Sec. 5. A student shall only serve as Magistrate if they have not committed any major offense as defined in the Student Handbook and carry the minimum academic load required for regular students.

Sec. 6. All Magistrates are prohibited from holding any appointed or elected position in any office or instrumentality of the USC or any CSC while serving as Magistrates.

Sec. 7. Magistrates of the Students' Judicial Council are appointed by the Executive Board.

Sec. 8. The Chief Magistrate shall be elected by and from among all Magistrates of the Students' Judicial Council. The Chief Magistrate should be a second-term (2nd-term) Magistrate, unless any of the following should occur, in which case any Magistrate shall be qualified for the position:

a) All Magistrates are first-time appointees; or

b) All second-term Magistrates decline the position of Chief Magistrate.

Sec. 9. No student may serve as Magistrate for more than two (2) terms in office.

Sec. 10. The term of office of the Magistrates shall commence upon appointment and shall end on the last day of April of the following year.

ARTICLE XII
THE STUDENTS' CONGRESS

Sec. 1. The Students' Congress is the highest policy-making body of the University Student Council.

Sec. 2. The Students' Congress shall be composed of eleven (11) members, one of whom shall be elected as Congress President.

Sec. 3. Members of the Students' Congress must have the following qualifications:

a) Must be a bona fide student of the University of Makati;

b) Must not have any failing grades, incomplete grades, or unofficially dropped subjects in at least two (2) semesters prior to election; and

c) Must be of good moral standing with no derogatory records, as certified by the OSL.

Sec. 4. The members of the Students' Congress shall have the following duties and responsibilities:

a) Evaluate the accomplishments of the University Student Council;

b) Deliberate upon and decide impeachment cases against USC Executive Board members with a two-thirds (2/3) vote of all its members; and

c) Propose amendments or revisions to this Constitution in accordance with Article XX.

Sec. 5. The Students' Congress shall elect its Congress President, who shall sign and ratify the final decisions of the Students' Congress.

Sec. 6. The Students' Congress shall also elect a Secretary who shall keep the roll and record the minutes of all meetings.

Sec. 7. In the event of a vacancy in the Students' Congress, the President of the USC Executive Board shall immediately appoint a replacement, based on the recommendation of the CSC Chairperson of the college in which the vacancy occurred, within five (5) working days of the declaration of vacancy.

Sec. 8. The Students' Congress shall convene on the second Friday of every month. The elected Vice President of the Students' Congress shall serve as ex-officio Chairperson and shall preside over the monthly meeting.

Sec. 9. A majority of 50% plus one (1) of the total membership shall constitute a quorum of the Students' Congress.

Sec. 10. In cases of emergency or matters of utmost importance, the Students' Congress may convene upon the written request of a majority of its members.

Sec. 11. The members of the Students' Congress shall hold office for one (1) year, beginning from the day they take their oath of office on the first day of May until the same day of the following year.

ARTICLE XIII
COORDINATING COUNCIL OF CAMPUS CO-CURRICULAR ORGANIZATIONS

Sec. 1. The Coordinating Council shall be headed by the President of the University Student Council as the Chairperson.

Sec. 2. The Coordinating Council shall be composed of the Presidents of all recognized and legitimate campus co-curricular organizations.

Sec. 3. The Coordinating Council shall have the following functions:

a) Coordinate University-wide activities that require the participation and involvement of the entire student body;

b) Provide a consultative mechanism and support for the implementation of the various programs and projects of all co-curricular organizations;

c) Plan programs and synchronize student activities on campus;

d) Serve as a venue for presenting accomplishment reports, financial reports, and such other reports of the USC and other organizations as are necessary or required; and

e) Set rules and standards for the collection of membership fees or contributions by recognized campus co-curricular clubs or organizations, subject to the approval of the University Administration.

Sec. 4. The Coordinating Council shall meet at least once every quarter, or upon notice of the Chairperson, or upon the request of any of its members, or as often as the Council may deem necessary.

Sec. 5. The Prefect of Student Activities shall serve as the Adviser of the Coordinating Council. All resolutions and agreements arrived at by the Coordinating Council shall be noted by the Adviser.

ARTICLE XIV
THE COMMISSION ON STUDENT ELECTIONS

Sec. 1. The Commission on Student Elections (COSEL) is a constitutional commission that shall serve as the official electoral body of the University. The regular Student Council election shall be held in the month of February of each academic year.

Sec. 2. The members of the COSEL shall be appointed by the College Student Council Chairpersons of the different colleges.

Sec. 3. The COSEL shall act on the following duties:

a) Formulate the Election Code for the orderly and fair conduct of Student Council elections;

b) Receive, review, and approve applications for candidacy;

c) Conduct all election procedures, including the election of USC officers;

d) Handle and decide on all election protests and disputes;

e) Attend to all matters pertaining to student elections;

f) Execute the conduct of the student election process based on implementing rules and guidelines;

g) Monitor and assist the elections of local organizations, provided that this is not contrary to those organizations' Constitution and By-Laws; and

h) Recommend election results to the OSL and PSA for proper endorsement.

Sec. 4. The decisions of the Commission on Student Elections shall be final and executory.

Sec. 5. The Chairman of the COSEL shall:

a) Preside over all proceedings of the COSEL; and

b) Act as Chief Executive Officer and official spokesperson of the COSEL.

Sec. 5-A. Composition: The COSEL shall be composed of one (1) Chairman and eleven (11) Commissioners, representing their respective colleges and centers of the University. All Commissioners must:

a) Be a regular, bona fide student of the University of Makati; and

b) Be of good moral character with no derogatory records, as certified by the OSL.

Sec. 6. The Commissioners of the COSEL shall be prohibited from holding any appointed or elected position in any office or instrumentality of the USC or any CSC while serving as Commissioners.

Sec. 7. The members of the COSEL shall elect their Chairman, Secretary General, Treasurer, Auditor, and the following committees: the Committee on Information Dissemination and the Committee on Logistics.

Sec. 8. The Chairman shall be elected by and from among all Commissioners. The Chairman should be a second-term (2nd-term) Commissioner, unless any of the following should occur, in which case any Commissioner shall be qualified:

a) All Commissioners are first-time appointees; or

b) All second-term Commissioners decline the position of Chairman.

Sec. 9. No student may serve as Commissioner for more than two (2) terms in office.

Sec. 10. The term of office of the Commission on Student Elections shall commence upon appointment and shall end on the last day of April of the following year.

Sec. 11. In the event that a regular election cannot be held in February due to a state of calamity, public health emergency, or other force majeure, the COSEL shall reschedule the election at the earliest practicable date, subject to the approval of the OSL, and shall notify all students accordingly.

ARTICLE XV
TENURE, QUALIFICATIONS, AND VACANCY

Sec. 1. All students enrolled in the respective colleges and academic centers shall elect their respective officers for the College Student Council.

Sec. 2. All USC and CSC officers shall hold office for one (1) academic year, commencing on the first week of May and ending on the last day of April of the following year. Each officer may be re-elected and may hold the same position for a maximum of two (2) consecutive academic years.

Sec. 3. All College Student Council officers must satisfy the following qualifications:

a) Must be a bona fide student of the University with at least one (1) year of residency before and after the election;

b) Must carry a minimum academic load of eighteen (18) units per semester, or as prescribed by the College or Academic Center;

c) Must have obtained a GWA of 2.50 or above, with no more than two (2) incomplete grades and no failing or unofficially dropped subjects;

d) Must have no record of a major offense, as certified by the OSL; and

e) Any incumbent officer seeking re-election must have been cleared of all financial liabilities with the Accounting Office.

Sec. 4. All CSC officers are required to submit a certificate of grades to the PSA at the end of every semester.

Sec. 5. All CSCs are required to submit their accomplishment report one (1) week before the Student Council Election.

Sec. 6. Vacancies shall be classified as follows:

A. Permanent Vacancies

A permanent vacancy shall occur upon any of the following:

a.1. Impeachment and conviction;

a.2. Voluntary resignation;

a.3. Permanent physiological and/or psychological incapacity as certified by a licensed medical professional;

a.4. Removal from office due to failure to maintain the grade requirement as provided in Section 3 of this Article;

a.5. Filing of a leave of absence for more than one (1) semester; or

a.6. Transfer to another institution.

B. Temporary Vacancies

A temporary vacancy shall occur upon any of the following:

b.1. Filing of a leave of absence for exactly one (1) semester; or

b.2. Temporary physiological and/or psychological incapacity, as certified by a licensed medical professional.

In all cases, a temporary vacancy may last for a period of not less than five (5) nor more than thirty (30) working days, after which it shall be deemed permanent.

Sec. 7. Any permanent vacancy in the position of the President shall be filled by the Vice President. In the event that both the President and Vice President are permanently unable to serve, the Secretary General shall assume the duties of the President in an acting capacity, and the Executive Board shall elect a new President and Vice President from among its members within ten (10) working days. The officers so elected shall serve only for the unexpired term.

Sec. 8. In the case of a temporary vacancy in the office of the President, the Vice President shall serve as Acting President until the vacancy ceases to exist. In the case of a temporary vacancy in both the President and Vice President, the remaining members of the USC Executive Board shall elect among themselves an Acting President until the vacancy ceases to exist.

Sec. 9. Upon the occurrence of any vacancy, the Council shall, within three (3) working days, pass a resolution declaring that a vacancy exists and shall notify the USC and the Students' Judicial Council. The resolution shall specify the grounds for the declaration of vacancy.

ARTICLE XVI
ACCOUNTABILITY OF STUDENT OFFICERS

Sec. 1. All University Student Council officers shall serve with responsibility, integrity, loyalty, and efficiency. They shall be accountable to all students and to University officials.

Sec. 2. Any USC officer shall be disqualified from continuing to hold office upon any of the following grounds:

a) Failure to enroll during the officer's term of office;

b) Unexcused failure to attend five (5) consecutive regular meetings within a semester;

c) Commission of a major offense as defined in the Student Handbook;

d) Conviction of any criminal offense by a court of law; or

e) Failure to meet the requirements stipulated in Article XV, Section 3 of this Constitution.

Sec. 3. A resolution disqualifying an officer shall be signed by the remaining officers and passed to the Students' Congress. Such a resolution shall only be proposed by the Executive Board.

Sec. 4. A USC officer shall be subject to impeachment on any of the following grounds:

a) Violation of any provision of this Constitution;

b) Inability to perform the functions of the office as stated in this Constitution;

c) Malversation of funds; or

d) Holding incompatible or conflicting office positions simultaneously.

Sec. 5. An impeachment case may be initiated through a resolution by any of the following:

a) A majority of the members of the Students' Congress;

b) A majority of the College Student Council officers; or

c) Any student, through endorsement by the College Student Council or the Students' Congress.

Sec. 6. An impeachment case may be filed against an officer only once during their term of office.

Sec. 7. An impeachment case filed against any Executive Board member shall be deliberated upon by the Students' Congress in a special session called for the purpose, which must be convened within ten (10) working days of the filing of the impeachment resolution. The session shall be presided by the President Pro Tempore of the Students' Congress. No officer shall be convicted without the concurrence of three-fourths (3/4) of all members of the Students' Congress. The deliberations shall not exceed fifteen (15) working days from commencement. The entire proceedings shall be witnessed by the:

a) Prefect of Student Activities (PSA); and

b) Students' Judicial Council.

ARTICLE XVII
CSC AND USC ADVISERS

Sec. 1. The Prefect of Student Activities, by virtue of their designation, shall be the head adviser of the University Student Council and shall guide the USC at all times.

Sec. 2. The College Dean shall automatically serve as the adviser of the College Student Council. In the event that the Dean designates another faculty member as adviser to the CSC, a formal letter signed by the Dean and approved by the PSA must be submitted.

Sec. 3. The head adviser shall serve as the official liaison between the University Student Council and College Student Councils and the school administration.

ARTICLE XVIII
FUNDING OF THE UNIVERSITY STUDENT COUNCIL

Sec. 1. The USC Fund shall be derived from the fixed and approved membership fee contribution of every enrolled student per semester and academic year, and from other approved sources such as sponsorships and fund-raising activities.

Sec. 2. The student contribution shall be collected upon enrollment for the first and second semesters and shall be collected and remitted by the University Cash Office.

Sec. 3. All expenses of the Council shall be paid from this fund in accordance with approved University guidelines on accounting and auditing rules and procedures.

Sec. 4. The total collection of the USC fee from a specific semester shall be divided as follows:

a) USC Executive Board — 45%

b) College Student Councils — 45%

c) Students' Congress — 10/3%

d) Students' Judicial Council — 10/3%

e) Commission on Student Elections — 10/3%

Sec. 5. The balance of the USC and CSC funds at the end of any semester shall be carried over and added to the fund for the following semester.

Sec. 6. All remaining fifty percent (50%) of the total budget allocated to each CSC shall revert to the USC general fund at the end of the concerned semester, unless properly liquidated.

Sec. 7. The authorized signatories for USC fund disbursement shall be the President and the Head of the Finance Committee as student representatives, and the Prefect of Student Activities and the Dean of the Office of Student Life as management representatives. Only one representative from each group may sign any check, in order to maintain a system of checks and balances.

Sec. 8. The USC Executive Board is responsible for the collection and accountability of miscellaneous fees under its jurisdiction, with the guidance of the University Cash Office. Any loss or misappropriation thereof shall be the joint responsibility of the officers of the Executive Board, subject to the applicable administrative and legal processes.

Sec. 9. The USC shall have the exclusive authority to govern and utilize its fund, subject to the accounting and auditing rules of the University and applicable law.

ARTICLE XIX
COMPLIANCE WITH APPLICABLE LAWS

Sec. 1. All activities, programs, policies, and decisions of the University Student Council shall at all times conform to the Constitution of the Republic of the Philippines, all applicable statutes, and the rules and regulations of the University of Makati.

Sec. 2. Data Privacy: The USC shall comply with Republic Act No. 10173, otherwise known as the Data Privacy Act of 2012. All personal information collected from students in relation to USC activities, elections, and membership shall be processed only for legitimate, specified, and explicitly declared purposes, and shall be protected from unauthorized disclosure.

Sec. 3. Safe Spaces: The USC shall comply with Republic Act No. 11313, otherwise known as the Safe Spaces Act. The USC shall adopt a zero-tolerance policy against gender-based sexual harassment, including catcalling, wolf-whistling, unwanted sexual remarks, and other forms of gender-based offenses in all USC-organized or USC-supervised activities and spaces. A complaint mechanism shall be established and made accessible to all students.

Sec. 4. Mental Health: The USC shall comply with Republic Act No. 11036, otherwise known as the Mental Health Act. The USC shall promote mental health awareness programs and coordinate with the University Guidance Office to ensure that mental health support resources are accessible to all students.

Sec. 5. Anti-Bullying: The USC shall comply with Republic Act No. 10627, otherwise known as the Anti-Bullying Act of 2013, and shall actively work to prevent bullying in all its forms — physical, cyber, and verbal — within the USC and all USC-related activities.

Sec. 6. Anti-Hazing: The USC shall comply with Republic Act No. 11053, otherwise known as the Anti-Hazing Act of 2018. Any form of hazing or initiation rites that cause physical or psychological harm is absolutely prohibited. Any USC officer found to have participated in, permitted, or failed to report hazing shall be subject to immediate impeachment and referral to proper legal authorities.

ARTICLE XX
AMENDMENTS AND REVISIONS

Sec. 1. Any amendment to or revision of this Constitution may be proposed by:

a) The Students' Congress, upon approval of two-thirds (2/3) of all its members; or

b) A Constitutional Convention, which shall be convened upon a two-thirds (2/3) vote of the USC Executive Board.

A Constitutional Convention, as defined by Philippine constitutional law, is a body assembled for the express purpose of framing, revising, or amending a Constitution. It shall be composed of the USC Executive Board, delegates from all College Student Councils and the HSU-SSG, representatives of recognized academic and non-academic organizations, and delegates from the general student body as determined by the Executive Board.

Sec. 2. Any amendment to or revision of this Constitution shall be valid only when ratified by a two-thirds (2/3) majority of votes cast in a plebiscite, which shall be held not later than one (1) month after the approval of such amendment or revision by the Students' Congress.

ARTICLE XXI
SEPARABILITY CLAUSE

If any provision of this Constitution is declared invalid, unconstitutional, or unenforceable, all other provisions not affected by such declaration shall remain valid and in full force and effect.

ARTICLE XXII
TRANSITORY PROVISION

Sec. 1. This Constitution shall take effect immediately after its ratification in a plebiscite and shall be deemed fully effective fifteen (15) days following the completion of its publication and dissemination to the student body.

Sec. 2. Immediately after ratification and the lapse of the fifteen-day publication period, the term of office of all elected officers of the USC and CSC shall commence on the first week of May and shall end on the last day of April of the following year.

Sec. 3. All existing USC By-Laws, resolutions, and guidelines not inconsistent with this Constitution shall remain in force until amended, repealed, or replaced by the appropriate council body.

Sec. 4. The USC membership fee in effect at the time of ratification of this Constitution shall continue to apply until formally revised through the process set forth in Article IV, Section 3 of this Constitution.

ATTESTATION

The foregoing 2026 Amended and Revised Constitution of the University of Makati Student Council was approved by the USC Students' Constitutional Convention on _____, Two Thousand and Twenty-Six (2026), at the University of Makati, and accordingly signed on the same day by the delegates whose signatures are affixed hereunder.

PRESIDENT
University Student Council

_____
Name and Signature

Witnessed and attested by:

PREFECT OF STUDENT ACTIVITIES

_____
Name and Signature

DEAN, OFFICE OF STUDENT LIFE

_____
Name and Signature